

3. From July 2011 to June 2012, SkyWest employed Deneffe as a pilot and first

officer on its regional airlines.

4. During this period, Deneffe logged 400 hours of flight time over 231 flights without a single violation, warning, or accident. His only performance review did not identify any deficiencies in his performance, and no supervisor ever warned him about any performance or safety problems.

5. SkyWest allowed its pilots to create a workplace culture in which anti-gay sentiment was commonplace. Pilots frequently referred to male flight attendants and other employees perceived to be gay as “faggots” or “Susie.”

6. Deneffe did not openly discuss his sexuality in the workplace; however, he regularly traveled on the airline with his gay partner through his flight privileges.

7. Other first officer pilots were generally much younger, usually around 25 years old, than Deneffe, who was 48 years old when he joined SkyWest.

8. On June 7, 2012, SkyWest abruptly terminated Deneffe’s employment without following its standard disciplinary process.

9. On April 26, 2013, Deneffe discovered in his Federal Aviation Administration (FAA) file a “Termination Information” document stating that SkyWest had terminated him for “Performance / Inability.”

10. No SkyWest supervisor or FAA official ever commented negatively on Deneffe’s flying performance.

11. In fact, after Deneffe was terminated, nine SkyWest pilots wrote letters to the airline attesting to Deneffe’s good performance and asking for his reinstatement.

12. SkyWest terminated Deneffe and later placed derogatory information in his FAA file because he is gay. Because all airlines rely on the information SkyWest provided to the

FAA, Deneffe has been unable to regain employment as a pilot since SkyWest terminated him.

JURISDICTION AND VENUE

13. This Court has jurisdiction over this action generally pursuant to 28 U.S.C. § 1331, as it asserts a claim that arises under the constitution, laws, or treaties of the United States, and more specifically Title VII, 42 U.S.C. § 2000e, *et seq.* and the ADEA, 29 U.S.C. § 621, *et seq.*

14. This Court has supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over Plaintiff's claim of discrimination under The Colorado Anti-Discrimination Act, Colo. Rev. Stat. § 24-34-301, *et seq.*, as this Court has original jurisdiction as detailed above, and the facts that support Plaintiff's claim under CADA are the same as those alleged with relation to his claims under Title VII and the ADEA.

15. Venue in this district and in this division is appropriate pursuant to 28 U.S.C. §§ 1391(b) and 1391(c), because SkyWest conducts business in this judicial district, and this judicial district is where the unlawful employment practices are alleged to have been committed.

PARTIES

16. Plaintiff Deneffe is a resident of Los Angeles County, California, and he is a proper plaintiff in this matter as he was an "employee" of SkyWest as that term is defined by Title VII, the ADEA, and CADA.

17. Defendant SkyWest, Inc. is headquartered in Utah, with its regional headquarters located at Denver Airport, 8500 Pena Boulevard, Denver, Colorado 80249. SkyWest, Inc. wholly owns SkyWest Airlines, which operates on contract with various major carriers and services 180 destinations in North America.

18. SkyWest is a proper defendant in this matter because it was Deneffe's "employer" as that term is defined by Title VII, the ADEA, and CADA.

FACTUAL ALLEGATIONS

19. Deneffe is a certified passenger airline pilot, cargo airline pilot, and pilot instructor. Prior to his employment with SkyWest, he had logged over 2300 hours of flight time

20. Throughout his career as a pilot, Deneffe was never involved in an accident, nor was he cited for any violation of Federal Aviation Administration (FAA) rules.

21. Deneffe is a 50-year-old gay male and has been with his partner, Mr. Riku Doi, for twelve years.

Performance as a Pilot for SkyWest

22. Skywest hired Deneffe as a first officer on July 25, 2011 and assigned him to fly Bombardier CRJ 200 and CRJ 700 aircraft. He was based out of Denver International Airport (DIA) in Colorado.

23. In July and August, 2011, Deneffe attended ground training school in Salt Lake City, Utah, at SkyWest headquarters and passed all written and flight exams given during that time.

24. Between September 1 and October 2, 2011, Deneffe passed all training required to fly CRJ 200 and CRJ 700 aircraft.

25. The FAA issued Deneffe a New Airline Pilot License for CRJ 200, 700, and 900 aircraft on September 26, 2011.

26. From October 5, 2011 to October 28, 2011, Deneffe had his Initial Operating Experience (IOE) flights with experienced captains.

27. None of the captains who flew with Deneffe during his IOE flights notified Deneffe of any deficiencies in his performance.

28. On October 28, 2011, Deneffe completed his training. From then until to his

termination on June 4, 2012, Deneffe logged 400 hours of flight time with passengers all over the United States and Canada. Deneffe piloted flights for SkyWest under the airlines Delta Connection, United Express, and Alaska Airlines.

29. Deneffe successfully completed 231 flights without a single violation, warning, or accident.

30. Throughout his tenure with SkyWest, captains and crew members Deneffe flew with frequently praised his performance and attitude. Deneffe was praised on two occasions for exemplary work that he performed above and beyond his assigned duties.

31. On Christmas Day, 2011, SkyWest crew at Denver International Airport were having difficulty finding a pilot willing to fill in for an officer who did not report for a scheduled flight. The flight had been boarded, passengers were left waiting on the aircraft, and SkyWest would have had to cancel the flight if it could not find a pilot.

32. Although he was returning from another flight and was not scheduled to fly again that day, Deneffe volunteered to serve as a first officer to fill in for the missing pilot.

33. Deneffe boarded the airplane to cheers and applause from both passengers and crew members.

34. The captain on that flight, Chad Hightower, told Deneffe that he was surprised that Deneffe had volunteered for an unscheduled flight on Christmas Eve and Christmas Day.

35. Deneffe received an email on December 29, 2011 from Chief Pilot Rob Graser praising him for having volunteered for the Christmas Day flight:

“I received a compliment from Captain Hightower on your willingness to work over Christmas and your positive attitude. I’ve added it to your file and put a Starbucks card in your file. Welcome to Skywest.”

36. Deneffe’s colleagues all congratulated him and noted that he should keep a copy

of the email because it is not often that a pilot receives such praise from the Chief Pilot.

37. Deneffe received letters of thanks from the scheduling crew for his willingness to volunteer, which kept other flights from being cancelled on Christmas Day. He also received a RAVE (“Recognize and Value Everyone”), an official written commendation submitted by another crew member at SkyWest.

38. On March 11, 2012, Deneffe was the pilot for SkyWest Flight 6244 from Boise, Idaho, to Denver. When the plane was about to arrive at Denver, the aircraft signaled a problem known as “gear disagree,” in which landing gear may not have locked before the plane touched down on the runway,

39. In anticipation of a potential emergency upon landing, Denver International Airport called fire trucks and ambulances to the tarmac.

40. When the captain of the flight, Luke Bryant, asked if Deneffe wanted him to take over because of the potential problem, Deneffe responded that he was comfortable going forward.

41. Captain Bryant and Deneffe performed the instructions in the pilot’s Quick Reference Handbook and “recycled” the gear, which came down as expected.

42. Deneffe landed the plane safely and without incident.

43. This was Deneffe’s first time operating an airplane with a malfunction. Had the captain not found Deneffe’s actions insufficient in some way, he would have been required to take control of the plane.

44. An FAA representative seated in the cockpit throughout that flight later told Deneffe, “Good job under stress up there!”

45. The first and only formal review SkyWest gave Deneffe during his tenure was a

six-month performance review with Chief Pilot Rob Graser, the chief pilot for SkyWest's Denver operations, near the end of January 2012.

46. During the six-month review, Graser identified no deficiencies in Deneffe's performance.

Discrimination at SkyWest Based on Sex, Sexual Orientation and/or Age

47. SkyWest fostered a culture which celebrated stereotypical straight male behavior and openly disfavored gay males.

48. During many flights Deneffe piloted, other pilots jokingly insinuated that male flight attendants were homosexual, referring to them by the nickname of "Susie."

49. Deneffe once heard another pilot refer to male flight attendants as "the little faggots who bring us our coffee."

50. Other male pilots also commented, "I am not getting laid this trip," and "I will make sure I double lock my room" when only male attendants were on a flight.

51. Male pilots frequently made disparaging remarks about openly gay men in general, with comments such as "Freddie Mercury was so talented, it's such a shame he's gay."

52. During flights, male pilots also regularly engaged in banter about their heterosexual exploits.

53. Deneffe was conspicuously silent when his co-workers discussed their sexual activities with women, made homosexual jokes, or talked about their wives and children. .

54. However, at the time Deneffe was hired, he listed the name of his male partner, Riku Doi, as the only beneficiary for his flight privileges on the airline, which are available only for family members, spouses, or gay partners.

55. Deneffe took one or two trips each month with Doi, including a long trip to

Hawaii. Many other pilots within the SkyWest community saw the two at the airport and on flights together.

56. At one point, Deneffe talked about sexual orientation with another female pilot, Captain Gina Martyn, who is openly lesbian. Deneffe complimented her for being open about her orientation.

57. Martyn replied by saying that SkyWest as a corporation does not treat gay employees fairly because it is owned by Mormons, whose religious tenets denounce homosexuality.

58. Martyn said that when she disclosed her orientation to a male co-pilot at SkyWest, he said she would “burn in Hell” for being a lesbian.

59. Martyn also said that SkyWest removed her employment privileges from her lesbian partner and had to “fight” the company to get them back.

60. Deneffe was considerably older than most first pilots employed by SkyWest.

61. Deneffe began working for Skywest as a novice passenger airline pilot at the age of 48. The usual age for new pilots is about 25, and most pilots are around 30 years old.

62. Most other pilots of Deneffe’s age were captains.

SkyWest Terminates Deneffe’s Employment

63. On June 7, 2012, Chief Pilot Graser called Deneffe into his office. Graser told Deneffe that he had bad news for him. He told Deneffe that SkyWest was terminating his employment.

64. Deneffe was in shock and asked Graser to explain the grounds for his termination.

65. Graser said that SkyWest was not satisfied with Deneffe’s performance.

66. Deneffe told Graser that the company’s decision made no sense because no one

had notified Deneffe of any concerns about his performance.

67. Graser coldly replied, “It was our decision.” He offered no other reasons and did not mention any specific incidents or violations.

68. SkyWest company policy, as written in its manual “Discipline and Discharges – Standard Practice 3024,” requires that terminations for performance-based reasons are carried out according to a six-level process that begins with oral and written warnings and progresses to suspension and finally termination.

69. SkyWest afforded Deneffe no warning or other progressive action prior to its terminating his employment.

70. Graser did not give Deneffe a letter of termination or offer any retraining, both of which are necessary steps that the manual “Standard Practice 3024” requires.

71. Had SkyWest allowed Deneffe to continue piloting aircraft without retraining despite having concerns about his performance ability, the airline would have violated FAA safety procedures and endangered passengers.

72. Also, as per company policy, a representative from the SkyWest Airlines Pilots Association (SAPA), a quasi-union organization for SkyWest pilots, is supposed to be present when the company gives a pilot notice of termination.

73. No SAPA representative was present, and Deneffe was given no advance notice that would have allowed him to ask a representative to be present for the meeting.

Deneffe’s Subsequent Contact with Pilots and SAPA

74. In July 2012, Deneffe talked to a SAPA representative who had made inquiries to SkyWest about the company’s reasons for terminating him.

75. Chief Pilot Graser told the SAPA representative that during Deneffe’s January

2012 six-month performance review, Graser had given Deneffe an oral warning concerning performance deficiencies.

76. However, Graser had made no negative comments about Deneffe's performance during the six-month review.

77. A number of Skywest pilots that Deneffe has spoken to about his termination have expressed disbelief and confusion.

78. Captain Ryan Fletcher, with whom Deneffe had over 25 hours of flying time, was surprised that the airline failed to follow its procedures in terminating Deneffe's employment.

79. Fletcher wrote an email to Glaser in which he praised Deneffe's flying performance and "tremendous positive attitude." Fletcher urged Glaser to reinstate Deneffe and either follow the six-step disciplinary process or retrain Deneffe to address any performance concerns. Glaser never responded to Fletcher's email.

80. In response to news that SkyWest had terminated Deneffe, Captain Alan Neben, who flew with Deneffe during his IOE, sent Deneffe a text message saying, "this makes me sick." Neben also wrote SkyWest a letter asking the company to reinstate Deneffe.

81. Neben told Deneffe that he never received any complaints about Deneffe's performance after his IOE, which he was supposed to receive if Graser or other pilots had problems with Deneffe's performance.

82. Captain Barbara Warne, the first captain with whom Deneffe flew following his IOE, also wrote SkyWest a strong letter supporting Deneffe's reinstatement.

83. Warne told Deneffe that when she tried to talk to Graser about SkyWest's decision to terminate Deneffe's employment, Graser refused to discuss the topic and said "the case [was] closed."

84. All in all, at least nine pilots familiar with Deneffe's performance wrote SkyWest letters asking the airline to reinstate Deneffe.

85. All nine of these pilots sent copies of their letters to SAPA.

86. On August 14, 2012, the President of SAPA, Captain Michael Macias had a phone conversation with Deneffe, in which Macias told Deneffe that SAPA had closed its file on Deneffe's termination.

87. Macias assured Deneffe that the circumstances surrounding Deneffe's termination were "very strange" and that he would ask the organization to reopen the file.

88. Around August 2012, Deneffe found out that SAPA had reopened his file and had had a meeting with SkyWest management.

89. Deneffe received no notice from SAPA of what occurred at its meeting with SkyWest.

90. After August 2012, SAPA stopped all communications with Deneffe, despite his many attempts to contact the organization.

Deneffe's Discovery on April 26, 2013 of Derogatory Information in His FAA File

91. In early April 2013, Deneffe requested a copy of his FAA personnel file.

92. On April 26, 2013, Deneffe received in the mail a copy of the "Termination Information" document that SkyWest had submitted to the FAA.

93. The only information listed for SkyWest's terminating Deneffe is "Performance / Inability; Involuntary; Ineligible for Rehire."

94. Over the course of the year and several months since SkyWest terminated Deneffe's employment, he has applied for numerous pilot positions and attended several aviation job fairs.

95. Skywest's stated reason for terminating Deneffe has all but made him unemployable as a pilot.

96. All prospective employers can view the "Termination Information" document SkyWest submitted to the FAA in Deneffe's FAA file.

97. One airline recruiter told Deneffe, "With a termination like that, we're not going to take you," or similar words.

98. On October 23, 2013, Deneffe filed a charge of sex, age, and sexual orientation discrimination against SkyWest with the Equal Employment Opportunity Commission (EEOC) in Denver and Colorado Civil Rights Division.

99. On November 7, 2013, the EEOC issued a Notice of Right to Sue, bearing EEOC Charge Number 541-2014-00135, to Deneffe.

COUNT I
Title VII of the Civil Rights Act of 1964
42 U.S.C. § 2000e, et seq.
Discrimination Based on Sex

100. Deneffe incorporates the allegations in the foregoing paragraphs as though alleged herein

101. Deneffe is an "employee" as the term is defined at 42 U.S.C. § 2000e(f).

102. SkyWest is an "employer" as the term is defined at 42 U.S.C. § 2000e(b).

103. SkyWest violated 42 U.S.C § 2000e-2(a) by discriminating against Deneffe by terminating him because he did not conform to male gender stereotypes that the airline perpetuated among its pilots.

104. SkyWest further violated Title VII when it discriminated against Deneffe by submitting false and derogatory information to the FAA describing the reasons that it terminated his employment.

105. The reasons that SkyWest submitted to the FAA for terminating Deneffe's employment are false and pretext for unlawful discrimination.

106. Deneffe could not reasonably have discovered that SkyWest submitted derogatory information to the FAA until April 26, 2013, when he received a copy of his FAA file and saw SkyWest's stated reason for terminating his employment.

107. Deneffe has exhausted his administrative remedies under Title VII

108. For SkyWest's unlawful discrimination against Deneffe, pursuant to Title VII, Deneffe is entitled to general and special damages, economic damages including front and back pay, reinstatement, promotion, compensatory damages, reasonable attorney's fees to be paid by SkyWest, as well as his costs and any other legal and/or equitable relief that this Court deems appropriate.

COUNT II
The Age Discrimination in Employment Act (ADEA)
29 U.S.C. § 621 *et seq.*
Discrimination Based on Age

109. Deneffe incorporates the allegations in the foregoing paragraphs as though alleged herein.

110. Deneffe is an "employee" as the term is defined at 29 U.S.C. § 630(f).

111. SkyWest is an "employer" as the term is defined at 29 U.S.C. § 630(b).

112. Deneffe is at least forty (40) years of age as required at 29 U.S.C. § 631(a).

113. SkyWest willfully violated the ADEA when it treated Deneffe in a disparate manner based on his older age, compared to its treatment of younger pilots and first officers, when in June 2012 SkyWest terminated Deneffe's employment.

114. SkyWest further violated the ADEA when it submitted false and derogatory information to the FAA describing its reason for terminating Deneffe's employment.

115. For SkyWest's unlawful discrimination against Deneffe, pursuant to the ADEA, Deneffe is entitled to general and special damages, economic damages including front and back pay, reinstatement, promotion, compensatory damages, reasonable attorney's fees to be paid by SkyWest, as well as his costs and any other legal and/or equitable relief that this Court deems appropriate.

COUNT III
Colorado Anti-Discrimination Act
Colo. Rev. Stat. § 24-34-301, *et seq.*
Discrimination Based on Sex, Age, and Sexual Orientation

116. Deneffe incorporates the allegations in the foregoing paragraphs as though alleged herein.

117. Deneffe is an "employee" as the term is defined at Colo. Rev. Stat. § 24-34-401.

118. SkyWest is an "employer" as the term is defined at Colo. Rev. Stat. § 24-34-401.

119. Under CADA, it is unlawful for an employer to discharge or otherwise discriminate against any individual, with respect to his compensation, terms, conditions, or privileges of employment, wholly or partially for a discriminatory reason based upon sex, age, or sexual orientation. Colo. Rev. Stat. § 24-34-402(1)(a).

120. SkyWest violated CADA when it discriminated against Deneffe by terminating his employment because of his gender, age, and sexual orientation.

121. SkyWest further violated CADA when it submitted false and derogatory information to the FAA describing its reason for terminating his employment.

122. For SkyWest's unlawful discrimination against Deneffe, pursuant to CADA, Colo. Rev. Stat. § 24-34-405, Deneffe is entitled to general and special damages, economic damages including front and back pay, reinstatement, promotion, compensatory damages, reasonable attorney's fees to be paid by SkyWest, as well as his costs and any other legal and/or

equitable relief that this Court deems appropriate.

PRAYER FOR RELIEF

Plaintiff Deneffe prays this Honorable Court for the following relief:

- A. Judgment against Defendant SkyWest in an amount of any wages, salary, employment benefits, or other compensation denied or lost to Deneffe, including economic damages, liquidated damages, compensatory damages, and punitive damages to be determined at trial;
- B. Revocation of false and derogatory information submitted to the FAA;
- C. Re-employment, reinstatement, promotion, front pay, or other equitable relief;
- D. Pre-judgment interest;
- E. Interest due on unpaid wages;
- F. A reasonable attorney's fee and the costs of this action;
- G. Reasonable expert witness fees; and
- H. Any other relief this Honorable Court deems just and proper to award.

JURY DEMAND

Plaintiff demands a jury for all issues proper to be so tried.

Respectfully submitted,

/s/
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